

25CV03741 Regina Ruiz et al vs St. Vincent's Institution et al

County: santa-barbara

Division: Civil Law & Motion

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Motion: Defendants' Motion for Separate Trials.

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Tentative Ruling: Regina Ruiz et al vs St. Vincent's Institution et al

Case Number

25CV03741

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 06/03/2026 - 10:00

Nature of Proceedings

Defendants' Motion for Separate Trials.

Tentative Ruling

Attorneys for Plaintiffs: Lanny Tron, Terry Tron.

Attorneys for Defendants: Jennifer S. Branch, Ani Mazmanyman, Natalie C. Holtz.

Issue

Defendants' Motion for Separate Trials.

RULING

For the reasons set out below the Motion is DENIED.

Analysis

Defendants Motion

Filed 3/24/26; 2 pages; summarized: Defendants move the Court for an order separating the trial of Plaintiffs Ruiz and Berger; claims the interests of justice require the severance to solve legitimate concerns caused by joinder of the parties.

Supported by the Declaration of Ani Mazmanyany; 35 pages; attaches Plaintiff's FAC [31 pages].

Supported by Points and Authorities; 10 pages; summarized: Separate trials for Plaintiffs Ruiz and Berger are necessary. Their claims arise from distinct factual circumstances, span separate timelines, and require independent evidence and witnesses. Trying the claims together would risk jury confusion, unfair prejudice, and improper conflation of evidence. At the same time, Plaintiffs will not be prejudiced by separate trials, as each will retain the full opportunity to present her claims, evidence, and arguments. Accordingly, Defendants request that the Court order separate trials for Plaintiffs so that each Plaintiff's claims may be tried fairly and on their own merits.

Argument. Plaintiffs Ruiz and Berger bring this motion in reaction to the complaint alleging harassment, discrimination, retaliation, and other violations arising from their employment with Defendants St. Vincent's Institution and Daughters of Charity of St. Vincent De Paul Province of the West (Defendants). Although Plaintiffs filed a single lawsuit against two different Defendants, their claims arise from different factual circumstances, occurred at different times, and involve distinct alleged conduct and legal theories. As a result, trying these claims together would be inefficient and unduly prejudicial.

In Plaintiffs' First Amended Complaint, Ruiz alleges that her employment with Defendants deteriorated after she reported suspected misconduct in 2023, including alleged false billing by a contractor and the alleged theft of donated gift cards by an employee. Ruiz contends that the individuals involved were relatives of the organization's President and CEO, Rosa Paredes, and that she faced retaliation and discrimination from Paredes after reporting them. Ruiz also alleges Defendants violated her Family and Medical Leave (FMLA) leave rights by failing to notify her she was entitled to FMLA after her young children were injured in a serious car accident, and alleges Defendants placed her on unpaid 12-16 week leave instead of accommodating her disability. Ruiz alleges she was retaliated against after she submitted a letter to Defendants' Board of Directors describing her concerns and mistreatment. According to Ruiz, the alleged retaliation and discrimination created intolerable working conditions that ultimately forced her to resign.

Berger, by contrast, alleges she was subjected to sexual harassment by St. Vincent's Institution's Human Resources Manager and Safety Officer, Francis Avila. She also claims that she reported her disability to Defendants. Whereas Defendants accommodated her with an alternative work schedule, they then allegedly reprimanded her for it. Berger contends that she reported the alleged harassment and retaliation, but that Defendants failed to take corrective action and later terminated her employment for purportedly pretextual reasons. The only allegation she has in common with Ruiz is that she experienced retaliation after reporting the alleged theft of donated gift cards by a relative of Paredes. In short, Ruiz alleges retaliation and disability discrimination culminating in a constructive resignation, while Berger alleges retaliation and disability discrimination with a completely different fact pattern (other than one allegation), sexual harassment by a different individual, and wrongful termination. The claims involve different employment positions, different alleged misconduct, different witnesses, and different defenses. Because the claims rest on separate factual scenarios and distinct legal issues, trying them together would create a substantial risk of jury confusion and prejudice while unnecessarily complicating the proceedings.

Defendants request that the Court exercise its discretion to order separate trials for each Plaintiff. Separate trials will allow evidence related to each Plaintiff's claims to be presented clearly and efficiently, prevent prejudice from the introduction of unrelated allegations, and promote the fair and orderly resolution of the issues presented.

A trial court has the authority to sever causes of action for separate trials. Code of Civil Procedure section 598 provides, in relevant part: The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby . . . make an order . . . that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case . . . Code of Civil Procedure section 379.5 authorizes this court to order separate trials where there are multiple parties. Section 379.5 provides that where there has been a joinder of plaintiffs or defendants, “the court may make such orders as may appear just to prevent any party from being embarrassed, delayed, or put to undue expense, and may order separate trials or make such other order as the interests of justice may require.”

The primary purpose of each of these statutes is to avoid the possibility of prejudice to one or both parties, avoid the unnecessary waste of the court's time and money, and present evidence in a logical and economical fashion. It is within the trial court's sound discretion to determine whether a motion for separate trials should be granted. The trial court's determination of the motion for separate trials is subject to reversal on appeal only for clear abuse.

In the present action, Plaintiffs' claims arose from entirely different facts, occurred at different times, and in some instances involve different legal theories altogether. Accordingly, separate trials are warranted.

Separate Trials Are Necessary Because Each Plaintiff's Claims Arise from Different Facts, Events, And Alleged Conduct. Plaintiffs' First Amended Complaint asserts nine causes of action: (1) Unlawful Disability Discrimination in Violation of California's Fair Employment and Housing Act (“FEHA”); (2) Failure to Engage in the Good Faith Interactive Process in Violation of FEHA; (3) Failure to Provide Reasonable Accommodations in Violation of FEHA; (4) Unlawful Retaliation in Violation of FEHA; (5) Unlawful Sexual Harassment in Violation of FEHA; (6) Failure to Prevent Retaliation, Discrimination, and Harassment in Violation of FEHA; (7) Unlawful Retaliation in Violation of California Labor Code section 1102.5; (8) Tortious Termination in Violation of Public Policy; and (9) Intentional Infliction of Emotional Distress. Although eight of the nine causes of action are asserted by both Ruiz and Berger, the claims are not based on shared events or a common course of conduct. Rather, each Plaintiff relies on a distinct set of facts, involving different alleged conduct, different actors, and different employment circumstances. Accordingly, despite the overlap in causes of action asserted, the evidence required to prove each Plaintiff's claims will be materially different, further underscoring why separate trials are appropriate.

As an initial matter, only Berger asserts a claim for Unlawful Sexual Harassment in Violation of FEHA (fifth cause of action). Berger alleges that on or about February 6, 2024, she received emails from Human Resources Manager and Safety Officer Francis Avila after working hours, which she considered inappropriate. According to Berger, one of the emails included a sexual reference involving an arrow that she interpreted as insinuating a penis. Ruiz does not make any allegations of sexual harassment. Allowing Berger's sexual harassment claim to be tried together with Ruiz's claims, none of which involve allegations of sexual misconduct, would be unduly prejudicial. Evidence relating to alleged sexual harassment is inherently inflammatory and creates a substantial risk that a jury could improperly allow those allegations to influence its evaluation of Ruiz's entirely separate claims.

Moreover, the sexual harassment claim will require testimony, documentary evidence, and legal analysis distinct from the evidence relevant to Ruiz's claims. Trying these allegations together would therefore create a significant risk of jury confusion, unfair prejudice, and the improper commingling of unrelated factual scenarios.

The factual bases for Plaintiffs' disability-related claims, Unlawful Disability Discrimination in Violation of FEHA (first cause of action), Failure to Engage in the Good Faith Interactive Process in Violation of FEHA (second cause of action), and Failure to Provide Reasonable Accommodations in violation of FEHA (third cause of action) are likewise entirely different. Ruiz's claims are based on Defendants' alleged violation of her Family and Medical Leave Act leave rights, and on a disabling mental and physical condition that she contends arose from allegedly unbearable working conditions beginning in March 2024. Ruiz alleges that this condition required her to seek intermittent leave as a reasonable accommodation. She claims Defendants denied her request for intermittent leave and instead placed her on an unpaid 12-week leave.

Berger's disability-related allegations, by contrast, stem from a diagnosis she received in 2021 of a serious and rare autoimmune disease, Ankylosing Spondylitis. Berger alleges that Defendants previously provided her with an alternative work schedule of ten-hour workdays with a two-hour lunch break as an accommodation. However, in February 2024, she

was informed that she could no longer take the lunch breaks that had been part of her agreed-upon accommodation.

Accordingly, even where Plaintiffs assert the same legal causes of action, the claims will require the jury to consider entirely different medical conditions, accommodation requests, timelines, witnesses, and evidence. Presenting these distinct disability-related allegations in a single trial would unnecessarily complicate the proceedings and risk confusing the jury with two separate employment narratives that share little factual overlap.

Plaintiffs' retaliation-based claims, Unlawful Retaliation in Violation of FEHA (fourth cause of action), Failure to Prevent Retaliation, Discrimination, and Harassment in Violation of FEHA (sixth cause of action), Unlawful Retaliation in Violation of California Labor Code section 1102.5 (seventh cause of action), and Tortious Termination in Violation of Public Policy (eighth cause of action) are likewise based on entirely different factual allegations.

Ruiz alleges that in September 2023, she reported fraudulent billing by a contractor for

defendant St. Vincent's Institution, who is married to the President and Chief Executive Officer Rosa Paredes. Within a week of making that report, Paredes allegedly began retaliating against her by attacking her during a one-on-one meeting, instructing her not to document any issues or concerns in the future, and excluding her from a meeting. Ruiz further alleges that in November 2023, she reported the suspected theft of approximately \$670 in donated gift cards by Defendants' front desk receptionist, Luly Herrera. Ruiz claims that after making this report, Paredes continued to retaliate against her, including subjecting her to a disciplinary "counseling" meeting that pretextually focused on her purported lack of communication regarding certain events in November, and canceling meetings with her. Finally, Ruiz alleges that on March 7, 2024, she submitted a retaliation complaint to Avila regarding Paredes' conduct. Ruiz ultimately contends that the allegedly intolerable working conditions created by Defendants, including Paredes and Avila, forced her to resign on September 10, 2024.

The only allegation Berger has in common with Ruiz is that on November 22, 2023, she also reported the suspected theft of donated gift cards by Herrera through a detailed incident report. Berger's retaliation allegations otherwise arise from a different set of events and circumstances. She alleges that Paredes criticized her performance, despite her glowing review just weeks earlier, challenged her support of Ruiz, and erroneously stated that Berger was late for a meeting, in retaliation for Berger's "whistleblowing disclosures." She further alleges that she was terminated when she returned from a pre-planned trip on April 10, 2024, and contends that her termination was the result of disability discrimination, harassment, and retaliation.

Thus, even Plaintiffs' retaliation claims, while labeled similarly, depend on separate timelines, different employment actions, and different alleged misconduct for the most part. Trying these claims together would require the jury to simultaneously evaluate two independent employment histories and distinct alleged retaliatory motives, increasing the likelihood of confusion and the improper conflation of evidence. Separate trials will ensure that each Plaintiff's claims are evaluated on their own facts and evidence, without the prejudice that would result from presenting unrelated allegations in a single proceeding.

Finally, both Plaintiffs assert a claim for Intentional Infliction of Emotional Distress (ninth cause of action). Plaintiffs allege that Defendants' purportedly discriminatory, harassing, and retaliatory conduct constituted extreme and outrageous behavior that caused each of them severe emotional distress. However, the conduct underlying this claim, clearly stated in the First Amended Complaint, is also entirely different for each Plaintiff. Berger's claim is premised on allegations that Avila engaged in sexually inappropriate communications with her and rescinded her alternative work schedule, which she contends was a necessary accommodation for her medical condition.

By contrast, Ruiz alleges that Paredes placed her on a twelve-week unpaid leave, which she claims caused her and her three minor children to suffer near financial ruin. These allegations again require proof of separate conduct by different individuals, distinct circumstances, and different alleged harms. Presenting these unrelated emotional distress claims in a single trial would further compound the risk that a jury may improperly blend the evidence and attribute the alleged conduct involving one Plaintiff to the claims of the other. Separate trials will therefore ensure that each Plaintiff's claims are evaluated solely on the evidence relevant to that individual, without the prejudice and confusion that would inevitably result from trying these distinct matters together.

Based on the foregoing, Plaintiffs' claims arise from separate factual circumstances, involve different alleged misconduct, and require testimony and evidence from different witnesses. The claims vary in time, context, and legal theory, and several involve inherently prejudicial allegations that would unfairly influence the evaluation of unrelated claims if tried together. To prevent prejudice, avoid jury confusion, and ensure a fair and orderly resolution of the action, separate trials for Ruiz and Berger are necessary and appropriate.

Separate Trials Are Required in the Interests of Justice to Avoid Jury Confusion and Prejudice. Under Code of Civil Procedure section 379.5, a court may order separate trials "as the interests of justice may require." Courts routinely grant separate trials where joinder would create confusion, prejudice, or unnecessary complexity, particularly when claims involve different facts, timelines, or parties. In determining whether separate trials are appropriate, courts consider whether a jury could be confused by multiple claims or improperly influenced by evidence relating to one party or claim when evaluating another.

Here, the interests of justice strongly support separate trials. As detailed above, Ruiz and Berger assert overlapping legal causes of action, yet their claims arise from entirely distinct factual scenarios, involve different actors, span different time periods, and require separate evidence and witnesses. Berger's claims include sexual harassment allegations not asserted by Ruiz, while Ruiz's claims involve whistleblower retaliation and FMLA violations that Berger does not assert. Both Plaintiffs also rely on different medical conditions, accommodations, and retaliatory events, and their intentional infliction of emotional distress claims stem from entirely separate conduct.

Trying these claims together would likely confuse the jury and create a substantial risk that evidence relevant to one Plaintiff could improperly influence the evaluation of the other's claims. For example, a jury could conflate Berger's sexual harassment allegations or her accommodation disputes with Ruiz's whistleblower retaliation claims, leading to unfair prejudice. Likewise, evidence of Ruiz's unpaid leave causing financial harm to her and her children has no bearing on Berger's claims but could nonetheless influence a jury if presented together.

Here, given the substantial differences in the facts, witnesses, timelines, and legal issues involved in each Plaintiff's claims, separate trials are necessary to ensure that each Plaintiff's claims are evaluated fairly and solely on the evidence pertinent to that individual. Ordering separate trials in this case is therefore fully consistent with the "interests of justice" standard in Code of Civil Procedure section 379.5.

Plaintiffs Will Not Suffer Prejudice by Litigating Their Claims in Separate Trials. Ordering separate trials for Ruiz and Berger will not prejudice either Plaintiff. Courts

routinely recognize that separate trials do not impair a plaintiff's ability to present her claims fully; rather, they ensure that each claim is evaluated on its own merits. Each Plaintiff will retain the full opportunity to present evidence, call witnesses, and make legal arguments in support of her claims.

Separate trials in this case will, in fact, reduce the risk of prejudice. Because Ruiz and Berger's claims involve distinct facts, different alleged misconduct, separate employment timelines, and independent witnesses, trying the claims together could result in a jury improperly attributing the evidence or misconduct related to one Plaintiff to the other. By conducting separate trials, the court ensures that the jury will focus on the specific facts and evidence relevant to each Plaintiff, preventing any unfair influence or confusion.

Moreover, any procedural delays caused by separate trials are minimal and do not constitute prejudice. The benefits of avoiding jury confusion, minimizing unfair prejudice, and promoting a fair evaluation of each Plaintiff's claims far outweigh any inconvenience of sequential proceedings.

In short, separate trials will allow each Plaintiff to litigate her claims fully and fairly, without the risk that evidence concerning one Plaintiff's allegations will improperly influence the evaluation of the other's claims. Plaintiffs retain their full rights to recovery, and their ability to prove damages or liability remains unaffected, ensuring that no prejudice results from bifurcation.

Plaintiffs Response

Filed 5/20/25; 12 pages; summarized: Defendants have failed to establish that separate trials would promote convenience, avoid prejudice, or further judicial economy under CCP Sections 1048(b) or 379.5. The claims arise from overlapping retaliatory conduct, common decisionmakers, common witnesses, and common evidence. Separate trials would unnecessarily duplicate proceedings, increase costs, burden witnesses, and risk inconsistent verdicts. Plaintiffs request that the Court deny Defendants' Motion.

Argument. Defendants' Motion seeks separate trials for Plaintiffs Ruiz and Berger despite the fact the First Amended Complaint ("FAC") alleges a coordinated pattern of retaliation, discrimination, harassment, and failure to prevent unlawful conduct by the same integrated employers, the same decisionmakers, and the same management structure.

The FAC alleges that Defendants operated as an integrated enterprise and that Defendants' executives Rosa Paredes and Francis Avila engaged in retaliatory and discriminatory conduct against both Plaintiffs after they engaged in protected activities. Both Plaintiffs allege retaliation after reporting the theft of donated gift cards by Paredes' relative as well as retaliation for their opposition to Defendants' FEHA prohibited conduct; both allege disability-related discrimination; both allege failures by Defendants to prevent retaliation and discrimination; and both rely on the same corporate policies, management personnel, and institutional practices to establish Defendants' liability.

The Motion should be denied because the Plaintiffs' claims arise from a common nucleus of operative facts, involve overlapping witnesses and evidence, and present substantial efficiency and consistency concerns that overwhelmingly favor a single trial. Separate trials would result in duplicative testimony, repetitive presentation of evidence, inconsistent verdicts, and a needless waste of judicial resources.

As the Motion acknowledges, under California Code of Civil Procedure ("CCP") Sections 1048(b) and 379.5, this Court has discretion to order separate trials only where doing so would further convenience, avoid prejudice, or promote judicial economy. The moving party must do more than merely point to factual differences between Plaintiffs' claims. The moving party bears the burden of proving that separate trials are justified. This Court must be convinced that separate trials are necessary, in light of the general principle that a single trial tends to lessen the delay, expense and inconvenience to all parties. Multiple plaintiffs may properly be joined in an action, and "[i]t is not necessary that each plaintiff be interested as to every cause of action or as to all relief prayed for. Judgment may be given for one or more of the plaintiffs according to their respective right to relief." (CCP § 378(b))

The core liability evidence against Defendants is substantially overlapping in this case. The gravamen of both Plaintiffs' claims is that Rosa Paredes retaliated against employees who reported misconduct involving her relatives and employees who complained of FEHA prohibited conduct and that Defendants, through Avila and upper management, failed to stop or prevent the retaliation. Both Plaintiffs allege retaliatory conduct arising from the same protected whistleblower activity concerning the theft of donated gift cards by Paredes' relative, Luly Herrera. Both further allege that after engaging in protected activity by complaining of FEHA prohibited conduct, Paredes retaliated against them and that Avila and Defendants failed to intervene. Thus, the central liability witnesses, retaliatory motive evidence, and management-response evidence substantially overlaps.

The FAC repeatedly alleges that Defendants' executives Rosa Paredes ("Paredes") and Francis Avila ("Avila") were the principal decisionmakers involved in the unlawful conduct directed toward both Plaintiffs. The FAC further alleges that Defendants operated as an integrated enterprise and jointly controlled Plaintiffs' terms and conditions of employment. The overlap between the claims is substantial:

1. Both Plaintiffs allege they were employees of the same joint employers, St. Vincent's Institution and Daughters of Charity.

2. Both Plaintiffs allege retaliation arising from protected whistleblower activity concerning the theft of donated gift cards by Paredes' relative, Luly Herrera. Ruiz alleges she reported the theft on November 22, 2023. Berger likewise alleges she reported the same theft in a detailed incident report.

3. Both Plaintiffs allege that after engaging in protected activities of complaining of Defendants' unlawful conduct and FEHA prohibited conduct, Paredes and Avila

engaged in retaliatory acts against them. Ruiz alleges repeated disciplinary meetings, verbal attacks, exclusion from meetings, and retaliatory evaluations by Paredes. Berger similarly alleges that Paredes suddenly criticized her performance, challenged her support of Ruiz, and retaliated against her after her whistleblowing activity and support of Ruiz.

4. Both Plaintiffs allege disability-related discrimination involving the same HR official, Francis Avila. Ruiz alleges Avila denied accommodations, failed to engage in the interactive process, improperly placed her on involuntary leave, and denied remote work accommodations. Berger alleges Avila interfered with her disability accommodations, berated her concerning her modified work schedule, and participated in retaliatory conduct.

5. Both Plaintiffs allege Defendants failed to prevent retaliation, discrimination, and harassment despite repeated complaints to management and HR. Ruiz alleges she repeatedly complained to Avila and management regarding retaliation. Berger likewise alleges she reported retaliation, discrimination, and harassment to Defendants to no avail.

6. Both Plaintiffs assert the same FEHA causes of action for disability discrimination, failure to engage in the interactive process, failure to accommodate, retaliation, failure to prevent discrimination/retaliation, Labor Code Section 1102.5 retaliation, wrongful termination in violation of public policy, and intentional infliction of emotional distress.

These overlapping allegations demonstrate that the claims arise from the same workplace environment, involve the same decisionmakers, concern related protected activity, and will require extensive overlapping witness testimony and documentary evidence.

Further, the Motion concedes that both Plaintiffs reported the same misconduct involving gift cards and both allegedly suffered retaliation from Paredes thereafter. That overlap substantially undermines Defendants' attempt to characterize Plaintiffs' claims as entirely distinct employment disputes.

Nevertheless, Defendants attempt to portray the claims as wholly unrelated merely because the Plaintiffs suffered different manifestations of retaliation and discrimination. But California law does not require identical facts to justify joinder or a single trial. To the contrary, where claims arise from overlapping actors, policies, retaliatory motives, witnesses, and factual circumstances, joint trials promote judicial economy, avoid inconsistent verdicts, and prevent duplicative litigation.

Plaintiffs' Claims Involve Common Witnesses. While Defendants' Motion repeatedly contends Plaintiffs' claims involve "different witnesses," not once does the Motion specify these "different witnesses." That is because the witnesses are not different. Plaintiffs' overlapping claims involve witnesses common to both Plaintiffs' claims. Based on the allegations in the FAC, the following witnesses would need to testify twice, in both cases, if the cases are separated:

1. Rosa Paredes. Central decisionmaker in both Plaintiffs' retaliation and discrimination

claims; Retaliated against Ruiz after whistleblower complaints. Retaliated against Berger, criticized her support of Ruiz, and participated in events leading to Berger's termination. Relevant to: FEHA retaliation; management practices; harassment; failure to prevent; credibility of Defendants' HR response.

2. Francis Avila. Human Resources Manager and Safety Officer involved in both Plaintiffs' complaints and accommodation issues; Ruiz alleges Avila received retaliation complaints, handled leave/accommodation issues, denied accommodations, and participated in adverse actions. Berger alleges Avila engaged in harassment, interfered with accommodations, criticized her schedule, and participated in retaliatory conduct. Relevant to FEHA retaliation; interactive process; accommodations; harassment; failure to prevent; credibility of Defendants' HR response.

3. Luly Herrera. Subject of the whistleblower reports made by both Plaintiffs regarding alleged theft of donated gift cards. Relevant to protected activity; retaliatory motive; temporal relationship between reporting and adverse actions.

4. Sister Arthur Gordon, Vice President of Mission Integration and Archives. Present during Ruiz's disciplinary meeting where Ruiz complained the discipline was retaliatory. Relevant to broader issues involving management knowledge and retaliation, applicable to Berger's claims as well. As a DC representative/employee, may also testify regarding organizational structure and management practices affecting both Plaintiffs.

5. Board Members / Management Council Members. Ruiz alleges she sent complaints to the Board. Berger's retaliation allegations involved a Management Council meeting where she supported Ruiz. Witnesses concerning Defendants' knowledge; failure to investigate; ratification; and corporate policies.

6. Human Resources and Administrative Personnel. Common HR and management witnesses are likely to testify regarding FEHA policies; complaint procedures; investigations; accommodation practices; leave administration; disciplinary practices; personnel files; and retaliation complaints. The FAC alleges common policies and integrated operations. Such witnesses and testimony would be repeated in separate trials.

7. Employees Who Observed Retaliatory Conduct or Workplace Practices. The FAC alleges employees feared retaliation from Paredes; workplace meetings involving both Plaintiffs; overlapping management interactions. These witnesses are likely to overlap substantially.

8. Corporate Person Most Knowledgeable ("PMK") Witnesses. Plaintiffs will seek certain PMK depositions, for which Defendants will likely designate the same PMKs for each Plaintiff, regarding: organizational structure; FEHA compliance; investigations; accommodation policies; whistleblower complaints; disciplinary policies; integrated enterprise issues.

These witnesses are likely to testify in both trials if the cases are separated. The overlap in witnesses is substantial and strongly weighs against severance. Both Plaintiffs' claims will require testimony from Rosa Paredes, Francis Avila, management personnel, HR representatives, PMK witnesses, and witnesses concerning the gift-card theft investigation, retaliation complaints, FEHA policies, accommodation practices, and Defendants' response to employee complaints. Separate trials would therefore require duplicative testimony from the same witnesses concerning the same workplace practices and retaliatory environment, resulting in unnecessary inefficiency and burden on the Court, Plaintiffs' counsel, and witnesses alike.

Berger's Harassment Allegations Do Not Justify Separate Trials. The FAC contains eight causes of action, seven of which are pled for both plaintiffs. The only cause of action that does not apply to both Plaintiffs is the fifth cause of action for sexual harassment, asserted only by Plaintiff Berger. The fact that this one, single cause of action is unique to Plaintiff Berger does not support separating the trials. (CCP § 378(b) "[i]t is not necessary that each plaintiff be interested as to every cause of action or as to all relief prayed for.") Defendants suggest to the Court that this is Berger's primary claim, but it is not. Defendants argue that Berger's harassment allegations against Avila are inflammatory and unrelated to Ruiz's claims. But Avila is already a central witness in Ruiz's claims regarding retaliation, accommodations, leave administration, and Defendants' failure to prevent unlawful conduct. Thus, Avila's conduct toward Berger is not unrelated character evidence involving a remote actor; rather, it concerns one of Defendants' principal management officials who is independently central to both Plaintiffs' claims.

Moreover, the sexual harassment allegations in this case are not so inflammatory or unrelated as to require separate trials. The allegations concern workplace misconduct by one of the same central actors, Francis Avila, who is alleged to have sent an inappropriate email and to have made derogatory comments to Berger. Berger's claim does not involve inflammatory allegations of physical assault or egregious sexual misconduct likely to overwhelm the jury's ability to evaluate the evidence separately.

The fact that one Plaintiff alleges additional unlawful conduct beyond the other does not create the type of extraordinary prejudice warranting separate trials. If factual differences alone required separate trials, joint FEHA actions involving overlapping management actors and retaliatory conduct would seldom proceed together.

Defendants Reply

Filed 5/27/26; 10 pages; summarized: Defendants request that the Court grant the Motion for Separate Trials. Plaintiffs' claims arise from distinct factual circumstances, involve different alleged misconduct, require separate evidence and witnesses, and present a substantial risk of jury confusion and prejudice if tried together. Plaintiffs will not be prejudiced, as each will retain the full opportunity to present her claims on their own merits.

Argument: Plaintiffs' Opposition fails to overcome the fundamental flaw with trying Plaintiff Ruiz and Berger's claims together: their claims arise from distinct factual scenarios, different alleged misconduct, different medical conditions, different timelines, and different employment outcomes. Contrary to Plaintiffs' assertion, there is no "common nucleus of operative facts," and separate trials would not result in "duplicative testimony" or "repetitive presentation of evidence." While some witnesses may overlap and the claims may arise from the same workplace environment, this does not mean witness testimony and documentary evidence will overlap. The fact of the matter is that the underlying allegations require separate factual inquiries, distinct evidence, and independent legal analyses for each Plaintiff. As such, this Court should exercise its discretion to order separate trials for each Plaintiff.

Plaintiffs' assert that the "moving party bears the burden of proving that separate trials are justified" and that Defendants must "do more than merely point to factual differences between Plaintiffs' claims," citing to a federal Northern District of California case, *Spectra-Physics Lasers Inc. v. Uniphase Corp.* (N.D. Cal. 1992) 144 F.R.D. 99, for this proposition. As an initial matter, that case does not stand for the proposition that Defendants must "do more than merely point to factual differences between Plaintiffs' claims" as Plaintiffs suggest. Further, Plaintiffs' attempt to use a 1971 Legislative Committee Comment to elevate this federal case into persuasive authority is unavailing. While the Comment notes that Code of Civil Procedure section 1048 was revised to "confirm in substance" to Rule 42 of the Federal Rules of Civil Procedure, it does not supplant California's explicit statutory framework. Under governing California law, the inquiry is whether separate trials would further convenience, avoid prejudice, or promote judicial economy – standards that Defendants have fully satisfied. (Cal. Code. Civ. sections 1048 (b), 379.5, and 598.)

In the present action, Plaintiffs' claims arose from entirely different facts, occurred at different times, and in some instances involve different legal theories altogether. Accordingly, separate trials are warranted. Separate trials will prevent undue prejudice, conserve the Court's time and resources, and allow the evidence for each Plaintiff to be presented in a clear, logical, and efficient manner. Separate trials will also promote a more focused evaluation of each claim and may facilitate the resolution of the action.

The Claims Do Not Arise from a "Common Nucleus of Operative Facts." Plaintiffs characterize this as a unified retaliation and discrimination case. Specifically, Plaintiffs argue "[t]he gravamen of both Plaintiffs' claims is that Rosa Paredes retaliated against employees who reported misconduct involving her relatives and employees who complained of FEHA prohibited conduct and that Defendants, through Avila and upper management, failed to stop or prevent the retaliation." However, the only shared event is alleged retaliation after reporting the alleged theft of donated gift cards by a relative of Paredes, and that Plaintiffs were employees of the same employers. Although Plaintiffs attempt to lump their claims together to argue that their claims arise from common decision-makers and a common retaliatory and discriminatory environment, Plaintiffs' allegations are obviously distinct: Plaintiff Ruiz's claims center on reporting fraudulent billing by a contractor married to Paredes, FMLA violations related to her children's car accident, denial of intermittent leave, placement on unpaid 12-week leave, and constructive resignation on September 10, 2024. None of these factual allegations relate remotely to Berger's allegations.

Berger's claims center on sexual harassment by Avila, interference with her disability accommodation, and wrongful termination on April 10, 2024.

Further, Plaintiffs' disability and retaliation claims require entirely different proof: Ruiz alleges a mental and physical condition from working conditions requiring intermittent leave; Berger alleges a rare autoimmune disease (Ankylosing Spondylitis) requiring an alternative work schedule. Ruiz alleges she was forced on a medical leave of absence, and Berger alleges Avila rescinded her alternative work schedule for no justifiable reason. These are factually distinct interactive processes and accommodation analyses. Moreover, Ruiz claims in retaliation for making complaints, Paredes subjected her to discipline, attacked her during a one-on-one meeting, instructed her not to document any issues or concerns in the future, and excluded her and canceled meetings. Paredes claims in retaliation for making complaints, Paredes criticized her performance, challenged her support of Ruiz, and erroneously stated that she was late for a meeting. These distinct facts require different evidence and should not be tried together.

Similarly, Ruiz alleges constructive resignation; Berger alleges wrongful termination. These outcomes require separate causation analyses, different damages evidence, and different witnesses to the circumstances of separation.

Overlapping Witnesses Do Not Preclude Separate Trials. Plaintiffs contend that "the witnesses are not different" and list eight categories of purportedly overlapping witnesses they claim would need to testify twice if separate trials are ordered. This argument fundamentally misunderstands the inquiry. The question is not whether some of the same individuals will appear in both trials; it is whether the factual and legal issues are sufficiently distinct that trying the claims together would create a risk of prejudice and jury confusion.

The fact that Rosa Paredes and Francis Avila held management positions over both Plaintiffs does not mean their testimony will be identical in both trials. To the contrary, as detailed in Defendants' Motion, each trial would require these witnesses to testify about entirely different interactions, different decisions, and different time periods for each Plaintiff. In Ruiz's trial, Paredes would testify regarding the fraudulent billing report in September 2023, the gift card report in November 2023, the alleged retaliatory counseling meetings, and the circumstances leading to Ruiz's constructive resignation in September 2024. In Berger's trial, Paredes would testify regarding her criticism of Berger's performance (completely unrelated to Ruiz), her challenge of Berger's support of Ruiz at a Management Council meeting, and the circumstances of Berger's termination in April 2024. These are materially different fact patterns requiring materially different testimony.

Similarly, Avila's testimony would address fundamentally different subjects in each trial. For Ruiz, Avila would testify about receiving retaliation complaints, handling leave and accommodation requests for Ruiz's own mental and physical condition and to care for her young children and denying intermittent leave. For Berger, Avila would testify about entirely different matters: alleged sexual harassment through inappropriate emails, his discussions with Berger about her autoimmune disease, interference with a disability accommodation for her autoimmune disease, and his participation in retaliatory conduct leading to termination. That the same individual is involved in both sets of claims does not make the claims "overlapping." Rather, it underscores the danger that a jury will conflate evidence of Avila's alleged sexual harassment of Berger with his handling of Ruiz's entirely separate accommodation and retaliation claims.

As for the remaining witnesses Plaintiffs cite, Luly Herrera, Sister Arthur Gordon, Board Members, HR personnel, employees who observed workplace practices, and corporate Person Most Knowledgeable witnesses, these witnesses would provide general organizational background testimony concerning the gift card report, corporate structure, FEHA policies, and complaint procedures. This type of background testimony is not burdensome to present in two separate proceedings and does not outweigh the substantial prejudice that would result from a joint trial.

Moreover, even the sole overlapping claim between the Plaintiffs – retaliation after reporting the alleged theft of donated gift cards by a relative of Paredes – would likely produce different testimony, as Ruiz sent an email to Avila, while Berger reported the theft in a detailed incident report.

Accordingly, distinct testimony will be required for each Plaintiff's unique allegations regarding different protected activities, different adverse actions, different medical conditions, and different employment outcomes. Any inconvenience from

presenting limited overlapping testimony (twice) pales in comparison to the prejudice that would result from forcing a jury to simultaneously evaluate two independent employment histories involving distinct retaliatory motives, distinct disabilities, and distinct alleged misconduct.

Berger's Sexual Harassment Claim Creates Inherent Prejudice That Cannot Be Cured by Jury Instructions. Plaintiffs' Opposition concedes the central point: the sexual harassment cause of action is unique to Berger. Plaintiffs argue that Berger's sexual harassment allegations are "not so inflammatory or unrelated as to require separate trials" and that "[a]ny conceivable prejudice can be cured through limiting instructions and special verdict forms rather than the drastic remedy of separate trials" This argument understates the prejudice and overstates the curative power of jury instructions. Evidence relating to alleged sexual harassment is inherently inflammatory and creates a substantial risk that a jury could improperly allow those allegations to influence its evaluation of Ruiz's entirely separate claims. The sexual harassment claim will require testimony, documentary evidence, and legal analysis that is wholly distinct from the evidence relevant to Ruiz's whistleblower retaliation, FMLA violations, and constructive resignation claims.

Plaintiffs attempt to minimize this prejudice by arguing that the harassment allegations "concern workplace misconduct by one of the same central actors, Francis Avila" and do not "involve inflammatory allegations of physical assault or egregious sexual misconduct likely to overwhelm the jury's ability to evaluate the evidence separately"

However, this argument highlights the significant risk of jury confusion, unfair prejudice, and the improper commingling of unrelated factual scenarios if Plaintiffs' trials are not separated. The fact that Avila is a central witness in both Plaintiffs' claims does not cure the prejudice; it exacerbates it. If a jury hears evidence that Avila sent sexually inappropriate emails to Berger, it will inevitably view his handling of Ruiz's retaliation complaints, accommodation requests, and leave administration through that lens. In essence, the jury would be asked to evaluate Avila's conduct toward Ruiz, while simultaneously hearing evidence that this same individual allegedly sexually harassed Berger. The risk that the jury will improperly treat Avila's alleged sexual misconduct toward Berger as character evidence bearing on Ruiz's unrelated claims is precisely the type of prejudice that separate trials are designed to prevent.

Plaintiffs' reliance on limiting instructions and special verdict forms does not adequately address this concern. Limiting instructions ask jurors to compartmentalize inherently prejudicial evidence, to hear testimony about sexual harassment, and then set it aside entirely when evaluating a co-plaintiff's accommodation and retaliation claims against the same alleged harasser. This is not a realistic expectation, particularly where the same witness is central to both sets of claims and the jury must assess his credibility across fundamentally different contexts. The far more effective safeguard is separate trials, which eliminate the risk of improper cross-contamination of evidence altogether.

Plaintiffs' Claimed Prejudice from Separate Trials Is Speculative and Insufficient. Plaintiffs' Oppositions assert that Plaintiffs would suffer prejudice from increased costs, duplicated expert expenses, repeated emotional testimony, inconsistent verdicts, and delay. None of these concerns override the substantial risk of jury confusion and unfair prejudice that a joint trial would create. As to increased litigation costs, Plaintiffs offer no authority for the proposition that the incremental expense of two trials, as opposed to one longer, more complex joint trial, constitutes the type of prejudice that precludes separate trials under Code of Civil Procedure sections 1048(b) or 379.5. Courts routinely recognize that separate trials do not impair a plaintiff's ability to present her claims fully; rather, they ensure that each claim is evaluated on its own merits. Any procedural delays or incremental costs caused by separate trials are minimal and do not constitute prejudice. As to duplicated expert expenses, Plaintiffs fail to identify what expert testimony would actually be duplicated. To the extent Plaintiffs intend to call medical experts, the experts would necessarily be different for each Plaintiff, given their entirely different medical conditions – Ruiz's mental and physical condition arising from working conditions versus Berger's autoimmune disease. To the extent Plaintiffs intend to call damages experts, those experts would likewise address entirely different damages models given Ruiz's constructive resignation and Berger's termination.

As to Plaintiffs' concern regarding "repeated emotional testimony" on the basis that they "will be witnesses for each other's claims", this argument supports Defendants' position. If Plaintiffs intend to call each other as witnesses in a joint trial, the jury would hear emotional testimony from both Plaintiffs regarding their own claims and the other Plaintiff's claims, further compounding the risk that the jury will improperly conflate evidence and attribute the alleged conduct involving one Plaintiff to the claims of the other. Separate trials eliminate this precise problem by ensuring the jury focuses exclusively on the evidence relevant to each individual Plaintiff.

Plaintiffs' last argument, that separate trials risk "inconsistent factual findings" and "inconsistent verdicts" is speculative and mistakes the nature of this case. Plaintiffs identify five overlapping factual determinations they contend two juries would need to make: whether Paredes retaliated, whether Avila properly handled complaints, whether Defendants failed to investigate, whether Defendants maintained lawful FEHA practices, and whether Defendants ratified retaliatory conduct. However, these are not genuinely overlapping determinations. Plaintiff's alleged retaliation, Avila's handling of complaints, and Defendants' response to those complaints necessarily involve different facts, different alleged misconduct, different application of FEHA practices, and different legal theories. Different outcomes for the two Plaintiffs would not be "inconsistent"; they would reflect the independent merits of each claim evaluated on its own evidence.

In sum, Plaintiffs will not be prejudiced by separate trials. Each Plaintiff retains the full opportunity to present her evidence, call witnesses, and make legal arguments in support of her claims. Separate trials will, in fact, reduce the risk of prejudice by ensuring that each Plaintiff's claims are evaluated solely on the facts and evidence relevant to that individual, without the unfair influence of unrelated allegations.

The Court's Conclusions

The Court has read it all and considered everything. The Motion is not routine – indeed the complaint is not routine. Defendants make some good points. But not enough is said in their arguments that is persuasive to this Bench Officer.

This has been anticipated to be long trial; on 5/5/26 Plaintiff requested a jury trial; estimated 18 trial days for a jury trial. Interestingly, on the same date, Defendants estimate far less time; 7 days for a Court trial.

The Defendants' motion, if granted, would be a significant inconvenience to potential jurors. If there are two trials – in order to get 100 potential jurors just to start jury selection - instead of calling in 400 potential jurors [2 panels for 1 start date], we would call in 800 potential jurors [2 panels for 2 start dates].

Additionally, that does not consider that there are vast numbers of potential jurors who request deferrals after the panels get to the courtroom because so many folks do not get enough paid-for-jury-duty-time-off from their employers, or are students, or professionals, or a variety of excuses. The fact is -- 2 trials is a serious inconvenience to potential jurors and the Jury Commissioner's Office.

Additionally, there is a very real delay in jury selection. Typically, the jury panels come over – usually two – one in the morning and one in the afternoon. In this trial we might need three panels because there will be few potential jurors who can give the time demanded. Court administration and courtroom time is very important these days because so many people want to try their case.

There is also the issue of inconvenience and time allotment for the lawyers, clients, Judge, and courtroom staff in finding 36 days to try 2 cases instead of 18 days to try 1 case.

Defendants also give little credit to the jurors who will serve. We get a very high level of educated and retired UCSB, Westmont College, and Santa Barbara Junior College educators who make up the jury that is impaneled, especially in such long cases. The jurors will readily be able to make the distinctions called for in their case. Although it is not routine it is not rocket science either.

Defendant gives little credit to the lawyers on the case. There are experienced lawyers on the case who will have ample opportunity in their Mini-opening Statement, their Opening Statement and in their Closing Argument, to make the distinctions that must be made here.

Defendants rely primarily on generalized claims of “jury confusion” and prejudice arising from Berger’s sexual harassment allegations. That argument is insufficient. Employment actions frequently involve multiple overlapping FEHA discrimination, retaliation, accommodation, and harassment claims arising from the same workplace environment despite differing factual circumstances. Jurors are routinely tasked with evaluating distinct claims involving different plaintiffs, causes of action, and damages.

Defendants also ignore the substantial prejudice Plaintiffs would suffer from separate trials, including increased litigation costs [court reporters]; duplicated expert expenses, which can be the highest costs at trial; repeated emotional testimony; inconsistent factual findings; inconsistent verdicts; and delay in adjudication.

The balance of prejudice weighs strongly against separate trials. Defendants seek separate trials by fragmenting what is, at its core, a unified retaliation and discrimination case arising from a common workplace culture, common decisionmakers, and overlapping retaliatory conduct. Separate trials would require two juries to repeatedly determine: whether Paredes retaliated against employees who reported misconduct and FEHA violations; whether Avila properly handled retaliation complaints and accommodation requests; whether Defendants failed to investigate employee complaints; whether Defendants maintained lawful FEHA practices; and whether Defendants ratified retaliatory conduct by management. Those overlapping factual determinations create a substantial risk of inconsistent verdicts.

The Court concludes that separate trials will not prevent undue prejudice or conserve the Court’s time and resources or allow the evidence for each Plaintiff to be presented in a clear, logical, and efficient manner as claimed by the Defendants. Separate trials will not promote a more focused evaluation of each claim and will not likely facilitate the resolution of the action.

The Court will not order separate trials. Plaintiffs would be prejudiced if separate trials were ordered. The administration of justice would be prejudiced if separate trials were ordered.

Judges

Judge Thomas Anderle

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